

Mohammad Waseem v. State of U.P. & Another

Allahabad High Court · Division Bench · 11 October 2012 · 2012 SCC OnLine All 3806 · C.M.W.P. No. 53332 of 2012 · **Writ petition disposed of with directions; representation for instalments to be decided**

HEADNOTE

Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the licensee to extend the facility of instalments — but only to consumers in financial distress, with no waiver of surcharge. No officer below the rank of Executive Engineer may grant instalments; the Executive Engineer, DGM and General Manager may grant up to two, three and four monthly instalments respectively, the first instalment being not less than 40% of the total, and where the amount exceeds Rs. 10,000 the consumer must deposit post-dated cheques. On the consumer's representation to pay his dues in instalments, the Court directed the Executive Engineer to consider and decide the representation under Clause 6.14, granting interim protection from coercive recovery on the consumer depositing Rs. 15,000.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalment facility for consumers in financial distress

QUESTION

How and by whom may a consumer be allowed to pay outstanding electricity dues in instalments?

HOLDING

Under Clause 6.14 the licensee may extend instalments only to consumers in financial distress, with no surcharge waiver. Only an officer of the rank of Executive Engineer or above may grant them — the Executive Engineer, DGM and General Manager up to two, three and four monthly instalments respectively — the first instalment being at least 40% of the total, with post-dated cheques required above Rs. 10,000. The Executive Engineer was directed to consider and decide the consumer's representation accordingly. ¶ 6-7

LIMITING FACTS

Bill of Rs. 79,663 due; consumer's representation of 6.9.2012 to pay in instalments was pending; interim protection granted on deposit of Rs. 15,000.

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Instalments for electricity dues are a discretionary facility under Clause 6.14, confined to consumers in financial distress, granted only by an Executive Engineer or above within the prescribed tiers, with no surcharge waiver and a minimum 40% first instalment. ¶ 6